

MARTIN MARIETTA CORPORATION

LYONS PLANT

SUPPLEMENT TO EXHIBIT O

SOURCE OF LEGAL RIGHT TO ENTER



Operations at the Lyons Plant, including the open pit limestone quarry, are being conducted by the Applicant, Martin Marietta Cement, Western Division, a division of Martin Marietta Corporation. The operation is being conducted on fee lands owned by Martin Marietta Corporation to both the surface rights and all mineral rights. Applicant's legal right to enter upon such lands is by virtue of such ownership.

STATE OF OKLAHOMA)

) ss.

COUNTY OF TULSA)

I, Dale Mitchell, the President of Martin Marietta Cement Western Division, being of lawful age and duly sworn upon oath deposes and says:

That I have read the foregoing statement and to the best of my knowledge it is a true and accurate statement of the Applicant's Source of Legal Right to Enter the Affected Lands covered by the application.

Signed this 13th day of December, 1977.

Dale Mitchell, President
Martin Marietta Cement Western Division
P. O. Box 45586
Tulsa, OK 74145

SUBSCRIBED AND SWORN to before me this 13th day of December, 1977.

Notary Public

My Commission expires March 24, 1980.

The waste rock that is blasted is placed into the mined out area first. Then the overburden, a clayey material, is placed on top of the shale in an 8" to 15" layer. Then 4" to 6" of topsoil is placed on top of the clay. The topsoil is the top 4" to 6" material that is stripped off. This material varies in quality considerably.